

District- Chittagong

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 3874 of 2012

Mosammat Cheman Ara Begum being dead her
heirs 1. Hazi Md. Abdul Karim and others

... plaintiff appellant petitioners

- versus-

Mohammad Yunus and another

...defendant respondent opposite party

Mr.Ranjit Kumar Dhar, Advocate with

Mr. Swapan Kumar Roy, Advocate

....for the plaintiff appellant petitioners

No one appears

... for the defendant respondent opposite parties

Heard on: 14.01.2024, 15.01.2024

Judgment on: 17.01.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite party No. 1 to show cause as to why the impugned order No. 15 dated 17.07.2012 passed by the learned District Judge, Chattogram in Other Appeal No. 206 of 2011 rejecting the application of the plaintiff-appellant-petitioner for re-admission of appeal should not be set aside and/or passed such other or further orders as to this court may seem fit and proper.

The short facts for the purpose of disposal of the Rule are that the predecessor of the substituted petitioners as plaintiff filed Other Suit No. 126 of 2002 before the Court of Senior Assistant Judge, Fifth Court, Sadar, Chattogram impleading the opposite parties as defendants for specific performance of contract. The defendant opposite party No. 1 contested the suit by filing written statement and after hearing learned Assistant Judge dismissed the suit on contest by his judgment and decree dated 15.03.2011. The petitioner-plaintiff filed Other Appeal No. 206 of 2011 before the learned District Judge, Chattogram against the aforementioned judgment and order dated 28.05.2012. The Other Appeal No. 206 was fixed for hearing but learned Advocate for the plaintiff-appellant filed an application for adjournment on the ground of his illness which was rejected as being not moved and the appeal was dismissed for default with cost for none appearance of the plaintiff-appellant by judgment and order dated 28.05.2012. On the self-same date i.e. on 28.05.2012 on behalf of the plaintiff-appellant filed an application under section 151 of the Code of Civil Procedure for re-calling the order and restoring the same in its original file and number, which was fixed for hearing on 24.06.2012. The plaintiff appellant submitted cost fixed by the District Judge on that day and the defendant opposite party prayed time for filing written objection and on 17.07.2012 was fixed for hearing the application. On 17.07.2012 the learned District Judges by the impugned judgment and order was pleased to reject the application

filed by the plaintiff-appellant under section 151 of the Code of Civil Procedure holding that the application was not considerable as the appeal was dismissed for default in presence of the defendant respondent.

Being aggrieved and dissatisfied with the above order dated 17.07.2012 the plaintiff appellant moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule.

Mr Ranjit Kumar Dhar, the learned Advocate appearing on behalf of the plaintiff-appellant-petitioners submits that on 28.05.2012 the appeal was fixed for hearing. On the date fixed the learned Advocate for the plaintiff appellant filed an application for adjournment of hearing the appeal due to his own illness, but the same was rejected and the appeal was dismissed for default. Immediately after passing the order the learned Advocate on behalf of the plaintiff-appellant filed the application under section 151 of the Code of Civil Procedure for re-admission of the appeal after re-calling the dismissal order. But the learned District Judge without applying his judicial mind and without considering that the application under section 151 was filed without making any delay on the same day rejected the application committing an error of law which is an error in his order occasioning failure of justice. In support of his submissions learned Advocate referring to the case of Abdul Quddus Vs. Md. Mobarak

Hossain 51 DLR (AD) 54 and some other decisions reported in AIR, 1960 Patna 504, 58 IC 748, 1997 SCMR 1962 , 95 CLC 292 and 10 BLC 144 submits that as per the decisions made in these cases the Rule is deserved to be made absolute.

No one appears on behalf of the opposite party to oppose the Rule.

I have heard the submissions placed by the learned Advocate for the petitioners and perused the record along with the impugned judgment and order and relevant papers.

It appears that on 28.05.2012 was fixed for hearing of appeal. Learned Advocate for the appellant filed an application for adjournment on the ground of his own illness but the same was rejected and immediately after such rejection the appeal was dismissed for default with cost of taka 6,00.00. On the same day without making any delay the application for recalling the dismissal order under section 151 of the Code of Civil Procedure was filed and thereafter the cost awarded against the appellant was submitted. It is true if any appeal is dismissed for default specific relief is provided under Order 41 rule 19 or 19A. But it is long standing practice that if on the same day an application under section 151 of the Code of Civil Procedure is filed for recalling the order or re-admitting the appeal the court can invoke its inherent jurisdiction and can recall the order for dismissal and re-admit the appeal or restore the suit in its original file

and number. But learned District Judge without considering that the application filed under section 151 for invoking his inherent power on the self same day rejected the same mechanically. In the case of Abdul Kuddus Vs. Mobarak Hossain, 51 DLR (AD) 54, referred to by the learned Advocate for the petitioner, the plaintiff respondent filed Other Class Suit No. 22 of 1987 in the Court of Senior Assistant Judge, Shahjadpur for permanent injunction which was ultimately dismissed for default on 02.03.1996 for non-appearance of the plaintiff. On the same day the plaintiff filed an application under section 151 of the Code of Civil Procedure for restoration of the suit dismissed for default, the suit was restored by the trial Judge on 09.03.1996 which was affirmed by a single Bench of this Division against which the Civil Petition No. 597 of 1996 was filed before the Hon'ble Appellate Division. Their lordships were pleased to make following observations:

“The trial Court in its discretion restored the suit as the application was filed on the same day. A discretion having been exercised in the facts of the present case, we do not think that the learned Single Judge committed any illegality in affirming the order passed by the trial Court in exercise of his power under section 151 of the Code in the facts of the case. There was no lack of jurisdiction of the trial Court to restore the suit.”

In view of the above discussions and decision made by our Apex Court and considering the facts and circumstances of the case, I am of the view that the submissions made by the learned Advocate for the petitioner have substance since the application under section 151 of the Code of Civil Procedure for recalling the order for dismissal for default and re-admit the appeal was filed on the same day of its dismissal, the learned District Judge ought to have invoked his inherent power under section 151 of Code of Civil Procedure. But he without considering the facts and circumstances of the case and by not applying his judicial mind committed an error of law by rejecting the application under section 151 of the Code of Civil Procedure and as such, the Rule is deserved to be made Absolute.

In the result, the Rule is made absolute.

The impugned judgment and order dated 17.07.2020 passed by the learned District Judge in Other Appeal No. 206 of 2021 is set aside and the order of dismissed for default of the appeal dated 28.05.2012 is recalled and the appeal is re-admitted in its original file and number.

Let a copy of this judgment be transmitted at once.